

MASTER CLOUD SERVICES AND INFRASTRUCTURE AGREEMENT

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This Master Cloud Services Agreement ("Agreement") is entered into as of January 1, 2024 ("Effective Date"), by and between **Enterprise Operations Corp.** ("Customer" or "Client") and **CloudScale Technologies Inc.** ("Supplier" or "CloudScale").

1. RECITALS & DEFINITIONS

Supplier provides high-availability cloud compute, egress data transmission, and enterprise managed cloud storage infrastructure.

2. PRICING & BILLING SCHEDULE (SCHEDULE A)

All services shall be billed monthly in arrears based on metered utilization as set forth below:

Section 2.1 — Standard Cloud Compute (vCPU Instance Hours):

Standard Compute 4-Core vCPU instance runtime shall be billed at a fixed rate of USD 0.45 per instance hour.

Section 2.2 — High-Performance Compute (8-Core vCPU):

High-Performance 8-Core vCPU nodes shall be billed at a fixed rate of USD 0.90 per instance hour.

Section 2.3 — Volume Tiered Data Egress Bandwidth:

Monthly global data egress bandwidth shall be billed on a volume tiered pricing model as follows: (a) For monthly volume between 0 and 9,999 GB (Tier 1), the unit rate shall be USD 0.08 per GB. (b) For monthly volume between 10,000 and 49,999 GB (Tier 2), the unit rate shall be USD 0.05 per GB. (c) For monthly volume of 50,000 GB and above (Tier 3), the unit rate shall be USD 0.03 per GB.

Section 2.4 — Premium Enterprise Support Monthly Cap:

Dedicated Technical Account Management and 24/7 Premium Support shall be billed at USD 150.00 per engineer hour, subject to a hard contractual monthly cap amount of USD 5,000.00. The monthly total charged to Customer for support shall not exceed USD 5,000.00 under any circumstances.

3. SERVICE LEVEL AGREEMENT & PERFORMANCE CREDITS (SCHEDULE B)

Section 3.1 — Production Uptime Commitment:

Supplier guarantees 99.90% monthly service availability for all production workloads. If monthly availability falls below 99.90% but remains equal to or above 99.00%, Supplier shall automatically issue a SLA penalty credit equal to 10% of that month's total invoice. If monthly availability falls below 99.00%, Supplier shall automatically issue a SLA penalty credit equal to 25% of that month's total invoice.

4. PAYMENT TERMS & EARLY SETTLEMENT DISCOUNT

Section 4.1 — Payment Window & Early Discount:

Invoices are payable within Net-30 days. If Customer settles the invoice within 10 days of the invoice date, Customer shall be entitled to an early payment discount of 2% on the invoice total.